



Notification Waiver Determination

Apax Funds – Remy & Geiser GmbH and Gerresheimer Primary Packaging Plastics GmbH

Acquisition	Click Europe Bidco GmbH (the Acquirer), applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital of Remy & Geiser GmbH and Gerresheimer Primary Packaging Plastics GmbH (together, the PPP Business), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	21 September 2026

Parties to the Acquisition	The Acquirer is a special purpose vehicle that is wholly-owned by Click Topco SARL, a Luxembourg holding company that is ultimately owned by investment funds advised by Apax Partners LLP (Apax). Apax is a UK limited liability partnership based in London, and the parent company of a number of entities which provide investment advisory services to private equity funds in a range of industry sectors (the Apax Funds). The targets, the PPP Business, are part of Gerresheimer's Containment & Delivery Systems division and are global manufacturers of primary plastics packaging solutions for pharmaceutical, healthcare and cosmetic solutions. The PPP Business' activities are focused on plastic containment and closure systems for pharmaceutical applications.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given there is no horizontal overlap or vertical relationship between Apax (including its connected entities and the Apax Funds' controlled portfolio companies) and the PPP Business in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.

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Plastics GmbH (WA-05051)**

	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**